

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205127	COUNTY OF RIVERSIDE vs WAYNE	MOTION FOR AN ORDER APPROVING (1) THE RECEIVER'S AND COUNTY'S INTERIM EXPENSES; (2) PAYMENT OF THE RECEIVER'S AND COUNTY'S EXPENSES BY THE OWNER; AND (3) AUTHORIZATION TO MARKET THE PROPERTY FOR SALE GS STRATEGIES, INC.

Tentative Ruling:

Receiver's Motion for an Order Approving Expenses is granted. Order signed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503019	HA vs FELEGY	MOTION TO COMPEL

Tentative Ruling:

Plaintiff's Motion to Compel Further Discovery Responses is moot. Sanctions are denied.

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) The propounding party may move for an order compelling a further response if the party deems that an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).) Likewise, Pursuant to CCP §2033.010, any party may obtain discovery in which any other party must admit "the truth of specified matters of fact, opinion relating to fact or application of law to fact." Requests for admission differ from other forms of discovery because rather than seeking to uncover information, they seek to eliminate the need for proof and set at rest triable issues so they will not have to be tried. (*Muillo v. Superior Court* (2006) 143 Cal. App. 4th 730, 735-736.) The requesting party may move for an order to compel a further response if the party deems the answer to be evasive or incomplete. (CCP § 2033.290(a)(1).)

Meet and Confer:

A motion to compel a further response to an interrogatory, inspection demand or request for admission must be accompanied by a declaration stating facts showing a "reasonable and good faith attempt" to resolve informally the issues presented by the

motion before filing the motion. (CCP §§ 2030.300(b)(2); 2031.310(b) 2033.290(b).) “This rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) The level of effort necessary to satisfy the requirement varies depending on the circumstances of the case, but a serious effort is required. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) Whether a “reasonable and good faith attempt” was made requires an “evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit.” (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.) Importantly, the meet and confer declaration must state facts showing that the parties made “a reasonable and good faith attempt at an informal resolution of *each issue presented by the motion.*” (CCP § 2016.040, emphasis added.)

On May 11, 2026, Plaintiff served written discovery on Defendant. (Decl. of Ahmadshahi, ¶ 14.) Responses containing only objections were served on June 12, 2026. (Id at ¶ 19.) On June 15, 2026, Plaintiff’s counsel served a meet and confer letter demanding that supplemental responses be served by June 22, 2026. (Id at ¶ 24; Ex. 9.) Counsel for Defendant indicated that responses would be served but that he and Plaintiff needed additional time until June 27, 2026. (Ex. 10.) Based on this exchange, the meet and confer was minimal but effective in that Defendant agreed to provide substantive responses. The supplemental responses were served on August 7, 2026. (Decl. of Oozoonian, ¶ 11.) There is no evidence that the parties met and conferred regarding these responses. To the extent that Plaintiff seeks a determination as to the validity of the supplemental responses, the meet and confer letters did not address each issue presented to the Court.

Mootness:

Defendant argues that the Motion is moot because supplemental responses were served on August 7, 2026. As such, the present Motions concerning these initial responses are moot. When a responding party serves untimely responses that completely or substantially resolve the issues raised by the motion, the court retains the authority to hear the motion. (See *Sinaiko Healthcare Consulting v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 408-409.) In such cases, the court may deny the motion as unnecessary and just impose sanctions or order the parties to meet and confer and file separate statements or take the motion off calendar, thereby requiring the propounding party to file a new motion. (Ibid.)

Here, the Motion addresses the initial objections-only responses. Likewise, Plaintiff’s separate statement filed in support of the Motion addresses only the initial responses. For each request, Plaintiff argues that a further response is required because boilerplate objections are improper. The supplemental responses served on August 7, 2026 contain substantive responses largely without objections. Thus, the supplemental responses resolve the issues raised by the Motion rendering it moot. The Motion is denied as moot. If Plaintiff believes that the supplemental responses remain deficient, she may file a new motion directed at those responses after satisfying the meet and confer requirements.

SANCTIONS:

The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) The court may consider the issue of sanctions where the responding party serves responses after the motion is filed, rendering the motion moot. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 409.) “Whenever one party’s improper actions even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.)

In this case, circumstances make the imposition of sanctions unjust. Defendant served his initial responses on the last day for service in order to preserve the objections. (see CCP §§2030.290(a); 2031.300(a) [If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege.]) In response to Plaintiff’s meet and confer letter, counsel readily agreed to provide substantive supplemental responses, but indicated that he would not be able to provide them by the one-week deadline set by Plaintiff’s counsel. Although Plaintiff’s counsel accuses defense counsel of gamesmanship, it appears that this is based only on counsel’s service of objection-only responses despite the agreement to provide supplemental responses. While the substantive responses were untimely, the Motion appears to have been unnecessary as no trial date has been set nor discovery cutoff pending.